

Rashid Siddiqui v. State of U.P.

Allahabad High Court · Division Bench · 28 March 2017 · WRIT - C No. - 12946 of 2017 · **Writ disposed; petitioner left to invoke Clause 6.14.**

HEADNOTE

A consumer who seeks only to deposit electricity bills in installments must invoke Clause 6.14 of the Electricity Supply Code. The High Court will dispose of the writ leaving that alternative remedy open rather than itself directing installment payment.

FACTUAL SUMMARY

Rashid Siddiqui approached the Allahabad High Court against the State of U.P. and the Power Corporation seeking leave to deposit amounts due under bills raised by the Corporation in installments. At the hearing, counsel confined the petition to that single prayer. The Division Bench of Dilip Gupta and Siddhartha Varma, JJ. recorded that Clause 6.14 of the Electricity Supply Code is available for such relief, left the petitioner free to invoke that alternative remedy, and disposed of the writ without examining the bills or granting installments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment payment of bills

HOLDING

Where the only relief sought is permission to deposit electricity bills in installments, the consumer may invoke Clause 6.14 of the Electricity Supply Code; the writ petition is disposed of leaving that alternative remedy open. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO INSTALLMENTS ON THE FACTS, AND THE CORRECTNESS OF THE BILLS.

¶ 1